

April 4, 2006



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and
Hazardous Materials
Safety Administration**

DOT-SP 13738
(FIRST REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the one-time transportation in commerce of up to 2,831 model 48OM, 48T and 480 cylinders containing depleted uranium hexafluoride from the DOE plant in Oak Ridge, TN to the United States Enrichment plant in Piketon, OH. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED:
 - a. 49 CFR § 173.420(a)(2) in that cylinders may not have a certified water volume stamped on their name plate and may exceed the specified weight limits, and that the cylinders may be missing their nameplate, have an illegible nameplate, or have incomplete nameplate (no certified water volume listed) and may exceed the specified weight limits.
 - b. 49 CFR § 173.420(a)(3) as it pertains to cylinders ability to withstand the test specified in § 173.465(c) without loss or dispersal of the uranium hexafluoride and the cylinders ability to withstand the test specified in 10 CFR § 71.73(c)(4) without rupture of the containment system.

April 4, 2006

5. BASIS: This special permit is based on the application of Bechtel Jacobs dated October 7, 2005 submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Radioactive material, uranium hexafluoride non-fissile or fissile excepted	7	UN 2978	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING -

1. All cylinders transported under this special permit shall be weighed and measured prior to transport. The measurements taken shall be sufficient to calculate the actual volumetric capacity of the cylinder. Weight shall be used in conjunction with the density of depleted uranium hexafluoride to determine the volume of material contained in the cylinder. Cylinders whose volumetric contents exceed 63% of the total actual volumetric capacity of the cylinder may not be transported under this special permit.

2. Volumetric capacity of the cylinder determined by direct measurement may be used in lieu of the volumetric capacity marked on the cylinder.

3. Cylinders transported under this special permit may be shipped bare.

b. OPERATIONAL CONTROLS - The transport plan, BJC/OR-1432, Revision 2, dated March 2004, submitted as Attachment B of the original application must be followed.

c. COMMUNICATION - The package must be plainly and durably marked "DOT-SP 13738" in accordance with § 172.301(c).

8. SPECIAL PROVISIONS:

a. A current copy of this special permit must be maintained at each facility where the package is offered for transportation.

April 4, 2006

- b. Packagings permanently marked 'DOT-E 13738', prior to October 1, 2007 may continue to be used under this special permit for the remaining service life of the packaging or until the special permit is no longer valid. Packagings marked after October 1, 2007 must be marked 'DOT-SP 13738'.
- c. Shipping papers displaying 'DOT-E 13738' may continue to be used until October 1, 2007, provided the special permit remains valid.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

April 4, 2006

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety -- OHMSPA, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "R. Ryan Foster" or similar, with a stylized flourish.

for Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety.
http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm
Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: RB/AM